

Athens, 16-02-2024
No. Protocol: 586
DECISION 6/2024
(Department)

The Hellenic Data Protection Authority convened, upon the invitation of its President, in a regular session in the composition of a Department at its headquarters on 10/01/2024, in order to examine the case referred to in the background of this document. The meeting was attended via teleconference by Georgios Batzalexis, Deputy President, in the absence of the President of the Authority, Konstantinos Menoudakos, and the alternate member Georgios Kontis, as rapporteur, as well as the alternate members Dimosthenis Bougioukas and Maria Psalla, in place of the regular members Konstantinos Lamprinoudakis and Grigorios Tsolias who were unable to attend despite being duly summoned in writing. Also present at the meeting, by order of the President without voting rights, were Georgia Panagopoulou, special scientist – auditor as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

With the complaint No. G/IN/9056/23-07-2022, A (hereinafter referred to as the complainant) is directed against the company "X" (hereinafter referred to as the complained party). According to the complaint, the complainant was an employee of the complained party in the position of sales employee and alleges illegal processing of his personal data through the geolocation system operating in a vehicle that had been provided to him by the complained party. More specifically, he states that during his regular leave, he was called on the phone by the complained party and he did not respond to the calls. The sales manager of the complained party used the data from the installed geolocation system in the company car and appeared at the supermarket where the complainant had gone shopping. He mentions in the complaint that the installation and his notification about the geolocation system in the car had taken place two weeks prior.

The Authority sent to the complained party the document No. G/EXE/2101/24-08-2022, informing them about the content of the submitted complaint and inviting them to submit their written views regarding the complaint, with special reference to the issues of employee notification and the operation of the system outside working hours.

The company responded with document No. G/IN/10069/13-09-2022, stating that it had duly informed the complainant regarding the geolocation system and that the use of the vehicle outside working hours was not permitted. The complained party's use of the geolocation system occurred because the complainant did not respond to their phone calls for three days, and there was concern for the employee's health due to a previous health incident.

Subsequently, the Authority, in order to complete the examination of the case, summoned the complainant and the complained company, respectively, with documents No. G/EXE/2800/07-11-2022, G/EXE/2737/31-10-2022, to the Department meeting on 16/11/2022.

At the meeting on 16/11/2022, the complainant A attended via teleconference, and on behalf of the company "X," Theodoros Sidiropoulos with AMDS ..., and Georgios A. Kastritséas with AMDS During the hearing, the parties presented their views and were given a deadline for the submission of a memorandum. Subsequently, the complained party submitted its memorandum in a timely manner with document No. G/IN/12031/24-11-2022, while the complainant did not submit a memorandum. During the hearing, the complainant reiterated the points mentioned in his complaint. The complained party, both during the hearing and with the document dated ...

No. Prot. G/EIS/12031/24-11-2022 The memorandum submitted argued that since the use of the vehicle that had been granted to the complainant was solely for covering work-related needs during working hours, there was no technical possibility to deactivate the geolocation system in the said vehicle. It states that the complainant was informed about the installation of the geolocation system (GPS) by the letter dated 12/07/2022, which is attached to the memorandum. The memorandum also mentions the actions taken by the respondent after the complaint regarding the incident, in order to prevent any potential future misuse of the aforementioned geolocation systems: 1. The existing geolocation systems were removed so that new ones could be installed, which would allow users to

deactivate them. 2. The manager-legal representative of the company was designated as the responsible operator of the geolocation systems, given that the act committed by the appointed person against the complainant was done without the knowledge of the respondent and without any prior advice. 3. The user instructions for the geolocation system were updated, and 4. New documents were drafted to notify users about the installation and operation of the system, informing them about a) the purposes for which it was installed and operates, b) the retention period of the data collected daily through the aforementioned geolocation systems, and c) the rights of the users.

The Authority, after examining the elements of the file and having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, following a thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. From the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation (EU) 2016/679 – hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57(1)(f) of the GDPR and 13(1)(g) of Law 4624/2019, it follows that the Authority has the competence to address the complaint of the complainant against the respondent and to exercise, correspondingly, the powers conferred upon it by the provisions of Articles 58 of the GDPR and 15 of Law 4624/2019.

2. With Article 5(1) of the General Regulation (EU) 2016/679 for the protection of natural persons against the processing of personal data (hereinafter GDPR), the principles that must govern a processing are established. According to Article 5(1)(a) and (f) GDPR, “1. Personal data shall be: a) processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), [...] f) processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality')”, while as noted in the Preamble of the Regulation, “Personal data should be processed in a manner that ensures appropriate security and confidentiality of personal data, including protection against unauthorized access to such personal data and to the equipment used for processing them or the use of such personal data and that equipment” (Recital 39 in fine). Furthermore, according to the accountability principle explicitly stated in the second paragraph of the same article and which constitutes a cornerstone of the GDPR, the data controller “is responsible for, and must be able to demonstrate compliance with, paragraph 1 ('accountability')”. This principle entails the obligation of the data controller to be able to demonstrate compliance with the principles of Article 5(1).

3. Since according to the provisions of Article 4, paragraph 7 of the GDPR, the data controller is defined as “the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State.” According to the Guidelines 07/2020 of the EDPB regarding the concepts, any processing of personal data carried out by employees in the context of an organization's activities may be considered to be carried out under the control of that organization. Employees who have access to personal data within an organization are generally not considered “controllers” or “processors,” but rather “persons acting under the authority of the controller or the processor” within the meaning of Article 29 of the GDPR; therefore, in this case, the complainant is the data controller.

4. Regarding the transparency of processing, Article 12, paragraph 1 of the GDPR states that: “The controller shall take appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 and any communication in accordance with Articles 15 to 22 and Article 34 regarding processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular when addressing a child. The information shall be provided in writing or by

other means, including, where appropriate, electronically. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means.” The mandatory information to be provided is specified in Article 13 of the GDPR for the case where data is collected from the data subject and in Article 14 of the GDPR for the case where data has not been collected from the data subject. Specifically, this information includes at least “a) the identity and contact details of the controller and, where applicable, of the controller's representative, b) the contact details of the data protection officer, where applicable, c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing, d) the relevant categories of personal data, e) the recipients or categories of recipients of the personal data, f) where applicable, that the controller intends to transfer personal data to a recipient in a third country or an international organization and the relevant information, g) the period for which the data will be stored, or, if that is not possible, the criteria used to determine that period, h) information regarding the rights of the data subject under Articles 15-22 of the GDPR.” If the data has not been collected from the data subject, according to Article 14, paragraph 2, point f) of the GDPR, it is required to provide the data subject with the information “the source from which the personal data originate and, if applicable, whether the data originated from publicly accessible sources.” The information is provided either at the time of data collection when this is done by the data subject (Article 13 of the GDPR) or within the time period specified in paragraph 3 of Article 14 of the GDPR, in the case where the data has not been collected from the data subject.

5. In Opinion 2/2017 of the Article 29 Working Party regarding data processing in the workplace, paragraph 5.7 states that due to the sensitive nature of location data, it is unlikely that there would be a legal basis for monitoring the location of employees' vehicles outside of the agreed working hours. However, if such a need arises, the use should be proportionate to the risks. For example, this could mean that, to prevent vehicle theft, the location of the vehicle is not recorded outside of working hours unless the vehicle leaves a broader location (region or even country). Additionally, the information provided should be in accordance with the relevant guidelines.

****Location will only be displayed in emergency cases – the employer activates the visibility of the position by accessing data that has already been stored by the system when the vehicle exits a predetermined area.****

6. The respondent, as the data controller for the location data of the employee's vehicle, must be able to demonstrate compliance with the principles of Article 5(1) of the GDPR, maintaining the appropriate documentation as required. The Authority did not conduct a review of this documentation but examined the contents of the complaint regarding the specific use of this data in the particular incident.

7. From the aforementioned facts, it is evident that an employee of the respondent used the geolocation data of the vehicle clearly outside working hours, as the complainant was on lawful leave to determine the location of the complainant, as evidenced by the fact that the said employee appeared at that location.

8. Therefore, the Authority finds the following violations on the part of the respondent, as the data controller:

- a) unlawful processing of the complainant's personal data, due to the use of the location data of his vehicle outside working hours and for the purpose of locating the complainant.
- b) inadequate information provided to the complainant, in violation of Articles 5(1)(a) and Articles 12 and 13 and 5(2)(b) of the GDPR, regarding the operation of the system installed in the vehicle assigned to him, regardless of the fact that he did not have the right to use it outside working hours, a fact that the respondent admitted and subsequently took corrective actions.

9. Based on the above, the Authority considers that there is a case to exercise its corrective powers under Article 58(2) of the GDPR in relation to the identified violations and that, based on the circumstances that were established, an effective, proportionate, and deterrent administrative monetary fine should be imposed under Article 83 of the GDPR, both for the restoration of compliance and for the punishment of the unlawful behavior. Furthermore, the Authority took into account the criteria for determining the fine set out in Article 83(2) of the GDPR, paragraph 5(a) of the same article

applicable to the present case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), and the Guidelines 04/2022 of the European Data Protection Board for calculating administrative fines under the General Regulation, as well as the factual data of the examined case and particularly the criteria listed below.

- a) that the violation of the lawfulness of processing falls under the provision of paragraph 5 of Article 83 GDPR,
- b) that the incident appears to be isolated, as no sanction has been imposed by the Authority on the respondent for a similar violation in the past,
- c) that the violation directly affected one data subject,
- d) that the violation was due to a single action of an employee.

****FOR THESE REASONS****

****THE AUTHORITY****

A. Imposes, on "X" as the data controller, based on Article 58(2)(h) of the GDPR, an administrative fine of two thousand (2,000€) euros, for the identified violation of the principles of lawfulness of processing under Article 5(1)(a) of the GDPR.

B. Issues, based on Article 58(2)(b) of the GDPR, a reprimand to "X", as the data controller for the inadequate information provided in violation of Articles 5(1)(a) and Articles 12 and 13 and 5(2)(b) of the GDPR.

****The President****

****The Secretary****

Georgios Batzalexis

Irini Papageorgopoulou